

IN RE THE MARRIAGE OF:)
)
LUISA ARIAS MONTEALEGRE,)
Petitioner,)
)
and) Case No. 2024D007847
)
NICHOLAS ANTHONY BIANCHI,)
Respondent.)

NOW COMES, the Petitioner, **LUISA ARIAS MONTEALEGRE** (“Luisa”), by and through her attorneys, BERLIN MELZER LAW LLC, pursuant to 750 ILCS 5/501, and 750 ILCS 5/508 and all other relevant provisions of the Illinois Marriage and Dissolution of Marriage Act (hereinafter “IMDMA”) and this Court’s inherent contempt powers, Luisa hereby petitions this Honorable Court to issue a rule *instante*, against Respondent, NICHOLAS ANTHONY BIANCHI (“Nicholas”), compelling him to show cause why he should not be held in indirect civil contempt for his willful failures to comply with the October 31, 2024 and November 21, 2024 Court Orders. In support hereof, Luisa states as follows:

1. Luisa and Nicholas were lawfully married on December 30, 2022.
2. On October 22, 2024, Luisa filed her Petition for Dissolution of Marriage, which remains pending and undetermined by this Honorable Court.
3. The parties acquired certain marital assets during the marriage, including but not limited to, interests in the business commonly known as Aribia LLC - MGMT (a series LLC).
4. On October 30, 2024, Luisa filed her Emergency Petition for Temporary Restraining Order and Other Alternative Relief requesting that this Honorable Court enter a temporary restraining order to enjoin and restrict Nicholas from accessing, dissipating, transferring, liquidating, and/or

selling, or otherwise disposing of the marital business, Aribia LLC, Aribia LLC's associated series, and assets/income held within Aribia LLC – MGMT.

5. After an emergency hearing on October 31, 2024, this Court granted Luisa's Emergency Petition for Temporary Restraining Order and Other Alternative Relief. Paragraph (4) of the October 31, 2024 Order provides specifically as follows:

Nicholas and/or anyone acting on his behalf is hereby ordered to turnover all information related to the complete records to Aribia LLC to Luisa's counsel within fourteen (14) days of entry of this Order (unless otherwise agreed in writing), including but not limited to lease agreements, financial statements, profit and loss statements, expert valuations of any and all properties held within the company (i.e. appraisals, comparative market analyses, etc.), communication logs, copies of any checks / proof of rental payments for properties, and receipts / proof of expenses for the same and any other pertinent information.

A true and accurate copy of the October 31, 2024 Order is attached hereto as **Exhibit A**.

6. Nicholas was required to produce pursuant to Paragraph (4) of the October 31, 2024 Order on or before November 14, 2024.

7. On November 21, 2024, this Court entered an order requiring the parties to exchange Financial Affidavits and supporting documents on or before December 2, 2024. A true and accurate copy of the November 21, 2024 Order is attached hereto as **Exhibit B**.

8. On December 2, 2024, Nicholas's counsel requested a brief mutual extension to tender the parties' Financial Affidavits to December 6, 2024, to which Luisa's counsel agreed. A true and accurate copy of the December 2, 2024 email communication is attached hereto as **Exhibit C**.

9. On December 6, 2024, Luisa tendered her Financial Affidavit and supporting documents through counsel.

10. Pursuant to the parties' agreed extension date, Nicholas was required to tender his Financial Affidavit and supporting documents on December 6, 2024.

11. On December 10, 2024, Luisa's counsel sent email correspondence to Nicholas's counsel regarding the status of Nicholas's Financial Affidavit and supporting documents, as well as

the documents Nicholas is required to turnover pursuant to the October 31, 2024 Order. That same day, Nicholas's counsel responded that Nicholas's Financial Affidavit was received that morning and counsel requested twenty-four (24) hours to finalize and turn over. A true and accurate copy of the December 10, 2024 email correspondence is attached hereto as **Exhibit D**.

12. To date, Nicholas has failed to comply with Paragraph (4) of the October 31, 2024 Order to turnover the Aribia LLC complete records and associated documents which he is required to turnover pursuant to Paragraph (4) of the October 31, 2024 Order.

13. To date, Nicholas has also failed to comply with Paragraph (2) of the November 21, 2024 Order and has not tendered his Financial Affidavit and supporting documents as required.

14. Nicholas has no legally sufficient reason for his failure to abide by the terms of the October 31, 2024 Court Order and November 21, 2024 Court Order. Nicholas's failure and refusal to comply with the terms of said Court Orders is willful and contumacious of the Orders of this Honorable Court.

15. Illinois courts are vested with the inherent power to find a person in contempt. *In re G.B.*, 88 Ill.2d 36 (1981). This power is essential and incident to the maintenance of the courts' dignity and judicial authority (*In re Baker v. Baker*, 71 Ill.2d 480 (1978)) and may be exercised when a party fails to abide by the terms of a court order or judgment. *People v. I.W.I., Inc.*, 176 Ill. App. 3d 951 (1st Dist. 1988).

16. "The primary determinant of whether contempt proceedings are civil or criminal in nature is the purpose for which contempt sanctions are imposed. If contempt sanctions are imposed for coercive purposes – to compel the contemnor to perform a particular act – the contempt is civil in nature." *In re Marriage of Betts*, 200 Ill. App. 3d 26 (4th Dist. 1990).

17. "Civil contempt proceedings have two fundamental attributes: (1) The contemnor must be capable of taking the action sought to be coerced, and (2) no further contempt sanctions are imposed

upon the contemnor's compliance with the pertinent court order." *Betts*, 200 Ill. App. 3d 26 (quoting *In re Marriage of Logston*, 103 Ill.2d 266 (1984)).

18. "Contemptuous conduct is also categorized on the basis of whether it is direct or indirect." *Id.* Indirect civil contempt consists of contemptuous conduct that occur outside the presence of the court. *Id.*

19. That Supreme Court Rule 201(k) compliance is not necessary when enforcement is sought of a prior court order that has been defied. *Nedzvekas v. Fung*, 374 Ill.App.3d 618, 872 N.E.2d 431, 435 – 436, 313 Ill.Dec 448 (1st Dist. 2007).

20. Furthermore, that requiring compliance with Supreme Court Rule 201(k) before a court could enforce a previous order would permit a delinquent party to use Rule 201(k) to further delay proceedings, and in effect, penalize the party seeking lawful and timely discovery. *Id.*

21. Accordingly, the Court should issue a Rule *instanter*, requiring Nicholas to show cause as to why he should not be held in indirect civil contempt of this Court for his failure to abide by the October 31, 2024 Court Order and November 21, 2024 Court Order; that said Rule should be returnable *instanter*, and Nicholas should be ordered to pay all fees and costs incurred by Luisa as a consequence of his willful and contumacious failure to comply, as plead and alleged, including, but without limitation, the fees incurred by Luisa in the presentation and prosecution of this Petition.

22. Luisa has incurred attorneys' fees and costs in the preparation, presentation, and litigation of this Petition, caused solely by Nicholas's failure to abide by the terms of the October 31, 2024 Court Order and November 21, 2024 Court Order. As such, Nicholas should be ordered and compelled, pursuant to 750 ILCS 5/508(b) of the IMDMA to pay the attorneys' fees and costs in connection with this Petition.

WHEREFORE, the Petitioner, LUISA ARIAS MONTEALEGRE, respectfully requests that this Court enter an Order as follows:

A. Issue a rule to show cause returnable *instanter* against NICHOLAS ANTHONY

BIANCHI for his willful and contumacious failure to comply with the October 31, 2024 Court Order and November 21, 2024 Court Order;

B. Find that the failure of NICHOLAS ANTHONY BIANCHI to abide by October 31, 2024 Court Order and November 21, 2024 Court Order, as alleged, to be willful and contumacious and accordingly find that NICHOLAS ANTHONY BIANCHI to be in willful and indirect civil contempt of this Honorable Court;

C. Enter an order requiring NICHOLAS ANTHONY BIANCHI to pay all attorneys' fees and costs incurred for emails, calls, and in the preparation, presentation, and litigation of this Petition, pursuant to Section 750 ILCS 5/508(b) of the IMDMA and grant LUISA ARIAS MONTEALEGRE's counsel leave to file a Petition for Fees and Costs in connection therewith;

D. For such other and further relief as the Court deems equitable and just.

Respectfully submitted,


BERLINMELZER LAW LLC

Attorney No. 61242
BERLIN MELZER LAW LLC
Attorneys for Petitioner
1 North State Street, #1500
Chicago, Illinois 60602
Telephone: 312-602-9789
Email: admin@berlinmelzerlaw.com

VERIFICATION

Under penalties as provided by law pursuant to Section 1-109 of the Code of Civil Procedure, the undersigned certifies that statements set forth in this instrument are true and correct, except as to matter therein stated to be on information and belief and as to such matter the undersigned certifies as aforesaid that she verily believes the same to be true.


Luisa Arias (Dec 23, 2024 15:20 CST)

LUISA ARIAS MONTEALEGRE

EXHIBIT A

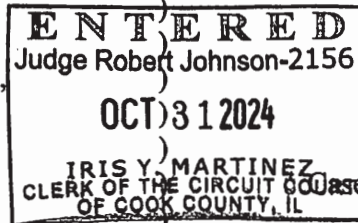
IN THE CIRCUIT COURT OF COOK COUNTY, ILLINOIS COUNTY DEPARTMENT, DOMESTIC RELATIONS DIVISION

IN RE THE MARRIAGE OF:

LUISA ARIAS MONTEALEGRE,
Petitioner,

and

NICHOLAS ANTHONY BIANCHI,
Respondent.



Case No. 2024D007847

ORDER

THIS MATTER coming before the Court for presentment and hearing on October 31, 2024, via Zoom, of Petitioner's Emergency Petition for Temporary Restraining Order and Other Alternative Relief; the Petitioner, LUISA ARIAS MONTEALEGRE ("Luisa"), being present in Court via Zoom and represented by counsel, Molly M. Carmody of Berlin Melzer Law LLC; the Respondent, NICHOLAS ANTHONY BIANCHI ("Nicholas") being present in Court via Zoom; the Respondent having received notice of the Emergency Petition for Temporary Restraining Order and Other Alternative Relief via email on October 30, 2024 at approximately 3:13 p.m. and personal service of the same attempted but unsuccessful on October 30, 2024 at approximately 7:30 p.m.; the Respondent being present in Court, acknowledging receipt via email of the Petition for Dissolution of Marriage and Emergency Petition for Temporary Restraining Order and Other Relief, participating in the hearing and thereby accepting service of the same in open court; the Court having jurisdiction over the parties hereto and subject matter herein and being duly advised in the premises;

IT IS HEREBY FOUND:

A. Based on the allegations set forth in Luisa's Emergency Petition for Temporary Restraining Order and Other Alternative Relief and argument, the Court finds this matter to be an emergency.

IT IS HEREBY ORDERED:

1. After conducting an emergency hearing, the Court hereby grants Luisa's Emergency Petition for Temporary Restraining Order and Other Alternative Relief and the relief requested therein.

2. Nicholas and/or anyone on acting on his behalf is hereby enjoined and restrained from selling, transferring, liquidating, dissipating, devaluing, or otherwise disposing of any and all interests or assets in the business commonly known as Aribia LLC – MGMT and Aribia LLC's associated series LLCs except in the ordinary course of business affairs until further order of Court or written agreement of the parties.

3. Nicholas is hereby ordered to turnover all information related to the complete records to Aribia LLC to Luisa's counsel within fourteen (14) days of entry of this Order (unless otherwise agreed in writing), including but not limited to lease agreements, financial statements, profit and loss statements, expert valuations of any and all properties held within the company (i.e. appraisals, comparative market analyses, etc.), communication logs, copies of any checks / proof of rental payments for properties, and receipts / proof of expenses for the same and any other pertinent information.

4. Nicholas and/or anyone acting on his behalf is hereby enjoined and restrained from contacting Luisa's family members, specifically Luisa's mother and brother currently residing the property located in Medellin, Colombia, with the exception of communication regarding necessary and immediate repairs that may be needed for the property (i.e. plumbing issues that need to be fixed immediately) until further Order of Court or otherwise agreed to in writing by the parties.

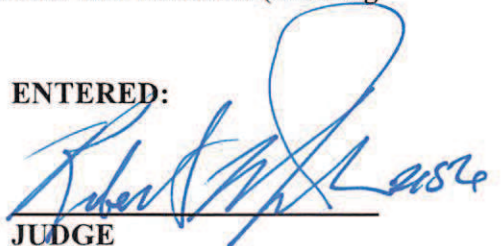
5. Within twenty-one (21) days from the entry of this Order, an appearance shall be filed on behalf of Nicholas or Nicholas shall file a *pro se* appearance.

6. Until further order of Court, or until such time as Nicholas has filed an Appearance *pro se* or an attorney has filed an Appearance on behalf of Nicholas, future notices shall be served upon Nicholas via email at nick@aribia.llc.

7. Nicholas is granted twenty-eight (28) to file a Response to the Petition for Dissolution of Marriage.

8. This matter is set for status on November 21, 2024 at 9:30 a.m. via Zoom (**Meeting ID: 934 9022 2003; Passcode: 543296**).

ENTERED:


JUDGE

Molly M. Carmody
BERLIN MELZER LAW LLC
Attorneys for Petitioner
1 North State Street - #1500
Chicago, Illinois 60602
Tel: 312-602-9789
molly@berlinmelzerlaw.com
admin@berlinmelzerlaw.com

Respondent's email: nick@aribia.llc

EXHIBIT B

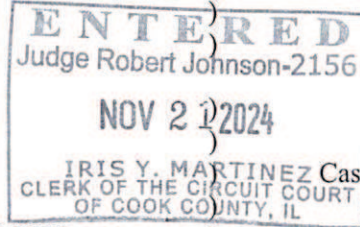
IN THE CIRCUIT COURT OF COOK COUNTY, ILLINOIS COUNTY DEPARTMENT, DOMESTIC RELATIONS DIVISION

IN RE THE MARRIAGE OF:)

LUISA FERNANDA ARIAS
MONTEALEGRE,
Petitioner,

and

NICHOLAS ANTHONY BIANCHI,
Respondent.)



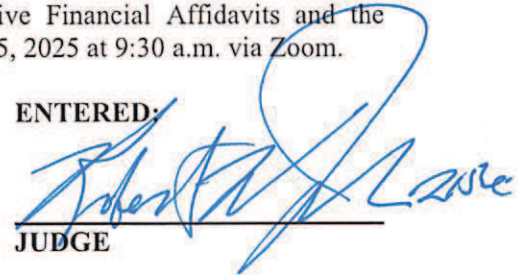
ORDER

THIS MATTER coming before the Court for status; the Petitioner being present via Zoom and represented by Molly M. Carmody of Berlin Melzer Law LLC; the Respondent being represented by counsel, Madysen Lehmann of Allen Glassman & Schatz LLC; the Court having jurisdiction over the parties hereto and subject matter herein and being duly advised in the premises;

IT IS HEREBY ORDERED:

1. The Respondent shall turnover all information related to the complete records to Aribia LLC in his possession or to which he has access to, to Luisa's counsel on or before December 2, 2024 of entry of this Order, including but not limited to lease agreements, financial statements, profit and loss statements, expert valuations of any and all properties held within the company (i.e. appraisals, comparative market analyses, etc.), communication logs, copies of any checks / proof of rental payments for properties, and receipts / proof of expenses for the same and any other pertinent information.
2. The parties shall tender Financial Affidavits and supporting documents on or before December 2, 2024.
3. This matter is set for status on the parties' respective Financial Affidavits and the Respondent's compliance with Paragraph (1) of this Order on January 15, 2025 at 9:30 a.m. via Zoom.

ENTERED:


JUDGE

Molly M. Carmody
BERLIN MELZER LAW LLC
Attorneys for Petitioner
1 North State Street - #1500
Chicago, Illinois 60602
Tel: 312-602-9789
molly@berlinmelzerlaw.com
admin@berlinmelzerlaw.com

Email for Respondent's counsel:
service@allenglassman.com

EXHIBIT C

From: Molly Carmody
Sent: Monday, December 2, 2024 2:38 PM
To: 'Jonathan Schatz' <JonathanSchatz@allenglassman.com>; Madyson Lehmann <MadysonLehmann@allenglassman.com>
Cc: Nicole Stonis <nicole@berlinmelzerlaw.com>; Joseph Luckett <JosephLuckett@allenglassman.com>
Subject: RE: Luisa Arias vs. Nicholas Bianchi; Case No. 2024D007847

Yes – we will agree to the extension to 12/6.

Hope you were able to have a break from work and a relaxing holiday!

Molly Carmody, Senior Associate

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*****Please be advised that our firm will be closed November 28th and November 29th for the Thanksgiving holiday.***

******Please note, except for true emergencies, the firm will be closed on December 24, 2024 and we will resume normal business hours on January 2, 2025. We hope you use this time as we will, to refresh and recharge, and spend some time with family and friends. Happy Holidays******



From: Jonathan Schatz <JonathanSchatz@allenglassman.com>
Sent: Monday, December 2, 2024 1:53 PM

To: Molly Carmody <molly@berlinmelzerlaw.com>; Madyson Lehmann <MadysonLehmann@allenglassman.com>

Cc: Nicole Stonis <nicole@berlinmelzerlaw.com>; Joseph Lockett <JosephLockett@allenglassman.com>

Subject: RE: Luisa Arias vs. Nicholas Bianchi; Case No. 2024D007847

That was the quickest 10 days of my life. Can we extend the deadline to exchange FAs to Friday?

EXHIBIT D

From: Jonathan Schatz <JonathanSchatz@allenglassman.com>
Sent: Tuesday, December 10, 2024 11:55 AM
To: Molly Carmody
Cc: Nicole Stonis; rmelzer berlinmelzerlaw.com; Joseph Lockett
Subject: Re: Arias/Bianchi - FA

We just got our clients in this morning. I am going to need 24 hours but if you have to file, file, even though that would be wasteful

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From: Molly Carmody <molly@berlinmelzerlaw.com>
Sent: Tuesday, December 10, 2024 11:46:31 AM
To: Jonathan Schatz <JonathanSchatz@allenglassman.com>
Cc: Nicole Stonis <nicole@berlinmelzerlaw.com>; rmelzer berlinmelzerlaw.com <rmelzer@berlinmelzerlaw.com>
Subject: Arias/Bianchi - FA

Good morning, Jonathan –

I wanted to follow up on the status of Nick's FA. Per our agreement, we were to exchange the FA on 12/6. Our office tendered a copy of Luisa's affidavit and supporting documents, but we have not received Nick's to date. We have agreed with numerous extensions regarding Nick's FA and production of the court ordered documents and, at this time, cannot agree to any further extensions and will proceed with court intervention for Nick's compliance with the same.

Sincerely,

Molly Carmody, Senior Associate

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*****Please note, except for true emergencies, the firm will be closed on December 24, 2024 and we will resume normal business hours on January 2, 2025. We hope you use this time as we will, to refresh and recharge, and spend some time with family and friends. Happy Holidays*****

REBECCA BERLIN-MELZER

2024

RECOGNIZED BY

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